



This is for information and instruction. Do not file it.

HOW TO SERVE A SUMMONS

1

FILL OUT AND FILE YOUR SUMMONS AND COMPLAINT/PETITION WITH THE CIRCUIT CLERK.

A *Summons* is a court form that tells a person they are being sued.

File your *Summons* and Complaint or Petition with the Circuit Clerk in the county where your court case is taking place. The Circuit Clerk will “issue” the *Summons* by putting a court seal on the form.

Use these Forms:

- *Summons*
- *Additional Defendant/Respondent Address and Service Information*

2

HAVE THE OTHER PARTY SERVED.

When you file a lawsuit, you must notify the person or business you are suing of the court case by having the *Summons* and Complaint or Petition delivered to them. This is called “serving” them. You cannot serve these forms yourself. Give the sheriff or a private process server your forms so they can serve them.

Use these Forms:

- *Letter to the Sheriff*
or
- *Letter to the Special Process Server*

3

CONFIRM THE OTHER PARTY WAS SERVED.

After the sheriff or private process server serves the other party with your court forms, they will fill out a *Proof of Service of Summons and Complaint/Petition* form. Then they will file it with the Circuit Clerk or return it to you. If the *Proof of Service* is returned to you, file it with the Circuit Clerk.

4

GO TO COURT.

The *Summons* either lists a court date or gives the other party 30 days to file a response after they are served. After that 30-day deadline, you may schedule a court date whether or not the other party filed a response. Ask the Circuit Clerk’s office how to schedule a court date.

Laws covering these forms: [735 ILCS 5/2-201 through 2-213](#) and Illinois Supreme Court Rules: [101](#), [102](#), [103](#), [104](#), [131](#), [283](#) and [284](#).



This packet is not legal advice. It provides general instructions on how to use these forms in your court case. It cannot and does not try to cover everything that might happen in your court case. Your use of the forms does not guarantee you will be successful in court.

How a judge handles a case can vary from county to county. **Your county may have special requirements that are not covered in these instructions.** Ask the Circuit Clerk’s office if your county has local rules and, if so, where you can get a copy.



STEP 1

FILL OUT AND FILE YOUR SUMMONS AND COMPLAINT OR PETITION WITH THE CIRCUIT CLERK.

ARE THESE FORMS FOR ME?

Use the *Summons* to notify each person you are suing that they are being sued and how to respond to the lawsuit.

- The person you are suing is called the Defendant/Respondent.
- Start your case by filing a Complaint or Petition. You may file the *Summons* at the same time as or after you file your Complaint or Petition.
- A copy of the Complaint or Petition must be served with the *Summons*.

Use these forms for:

- **Most civil cases**, for example: lawsuits for injury or property damage.

Do not use these forms for:

- Criminal cases.
- Administrative review cases, adult guardianship, detainee, foreclosure, and parentage cases.
- Some civil cases have their own *Summons*: divorce, eviction, small claims, and orders of protection (including civil no contact orders, stalking no contact orders, and criminal orders of protection). You can find forms for many of these case types at: ilcourts.info/forms.

Special information or papers needed to complete the form:

- You will need the names and addresses of everyone you are suing. You will also need your Complaint or Petition to attach to the *Summons*.
- Check with the Circuit Clerk if there are any additional notices or documents that must be attached to the *Summons* in your county.

You can find all of the statewide forms online at: ilcourts.info/forms.

For more help on serving a summons visit: ilao.info/serving-summons.

EXTRA HELP WITH THE FORMS



For more information about going to court, including how to fill out and file forms, **call or text Illinois Court Help** at 833-411-1121 or go to ilcourthelp.gov.

If there are any words or terms used in these instructions that you do not understand, please **visit Illinois Legal Aid Online** at ilao.info/glossary. You may also find more information, resources, and the location of your local legal self-help center at: ilao.info/lshc-directory.



IMPORTANT INFORMATION

What is the difference between a 30-day summons and a date certain summons?

- A **30-day summons** tells the Defendant/Respondent to file a response within 30 days after they are served with the lawsuit.
- A **date certain summons** tells the Defendant/Respondent to attend court on a specific date.
- On the *Summons*, check whether this is a 30-day summons or a date certain summons.
 - Use a **date certain summons** if you are asking for money of \$50,000 or less, or recovery of your personal property that you think the Defendant has, and for some mandatory arbitration cases.
 - Use a **30-day summons** for most other case types.
- If you are using a **date certain summons**, you will need to get a court date from the Circuit Clerk. In some counties, you will be given a court date when you e-file the *Summons*. List the court date in Section 2 of the *Summons*.

What if I am suing more than one person?

- Each person or business you are suing must be served with the *Summons* and a copy of your Complaint or Petition.
- On the *Summons*, list the contact information for the first Defendant/Respondent you are suing. Fill out and attach an *Additional Defendant/Respondent Address and Service Information* form for each additional Defendant/Respondent.

What if I am suing a business?

- If the business is incorporated, any officer, agent, or the “registered agent” of the business can be served with the *Summons*. A **registered agent** is a person or company who agrees to accept legal papers for an Illinois business.
- To find out if an Illinois business has a registered agent, look up the business on the Illinois Secretary of State’s website at bit.ly/Business-Search

What is a Proof of Service of Summons and Complaint/Petition?

- The *Proof of Service of Summons and Complaint/Petition* is the form that the sheriff or process server will fill out to prove that your *Summons* and Complaint or Petition were served on the Defendant/Respondent.
- If you are serving more than 1 person, you must give the sheriff or process server a blank *Proof of Service of Summons* for each person who will be served.

Where will I receive court papers?

- The email address (if you have one) and mailing address you put on the form is where important legal documents will be sent to you. You should use an email account that you do not share with anyone else and that you check every day. If you do not check your email every day, you may miss important information, notice of court dates, or documents from other parties.



COSTS AND FEES

There may be costs and fees to take part in a court case. This might include fees for filing court documents. Some case types have no fee for filing. Depending on the type of court case, there may be other costs and fees charged – for example, sheriff’s fees for serving documents on the other people in the case. If you cannot afford to pay costs and fees, you can ask the court to file for free or at a reduced cost by filing an *Application for Waiver of Court Fees*.

This is a separate form you can find at: ilcourts.info/fee-waiver-forms.

HOW TO FILE THE FORMS



E-filing

- After you fill out your court forms, file them with the Circuit Clerk. This is done by electronic filing, called “e-filing.” You do not have to e-file if:
 - You qualify for an exemption (see the Not E-filing section below) or
 - Your case involves a criminal matter or is filed under the Juvenile Court Act of 1987.
- There may be fees to file your forms. See the Costs & Fees section for more information.
- Most people e-file their forms using Odyssey eFileIL at ilcourts.info/efile.
- Follow step-by-step instructions and watch videos that walk you through the steps for e-filing at ilcourts.info/efile-info.
- E-filing is easier on a computer. It may not work on a cell phone or tablet.
- Original wills may not be e-filed.
- If you do not have access to a computer or if you need help e-filing, take your completed forms to a public library or a Circuit Clerk, Appellate Clerk, or Supreme Court Clerk’s office. These places offer public computers where you can e-file your forms.
 - Your courthouse may offer public computers with a scanner where you can turn your paper forms into electronic files.
 - Librarians and courthouse staff may be able to help you e-file, but they cannot provide legal advice.



Not E-filing

- Some people are not required to e-file, which means they can file paper forms at the courthouse or by mail. People who do not have to e-file are:
 - Inmates in prison or jail who do not have a lawyer.
 - People with a disability that keeps them from e-filing.
- You may also qualify for an exemption from e-filing if you:
 - Do not have internet or computer access in your home or can’t meaningfully use it.
 - Do not have an email account.
 - Do not have a credit card, debit card, or bank account.
 - Have trouble reading, writing, or speaking English.
 - Tried to e-file your forms, but you were not able to because the equipment or help you needed was not available.
 - Are filing an emergency case as allowed by local rule or order.
- To ask for an exemption from e-filing, use the form at ilcourts.info/exempt. If you cannot print this form, then ask for it at your local courthouse.
 - File your *Certification for Exemption from E-Filing* form along with your other court forms at the Circuit Clerk’s office or by mail.
 - Bring or send your signed court forms and at least two copies of your forms to the Circuit Clerk’s office. Ask them to stamp your copies and return them to you.
 - If you need to make copies of your forms, you can do that at the Circuit Clerk’s office. They may charge you a fee to make copies.
- There may be fees to file your forms. See the Costs & Fees section for more information.
- If you mail your court forms to the Circuit Clerk’s office, include a stamped envelope addressed to you. The Circuit Clerk will file your forms and then send your copies back to you in the envelope.



STEP 2

HAVE THE OTHER PARTY SERVED.

- When you file a lawsuit, you must notify the person or business you are suing of the court case by having the *Summons* and Complaint or Petition delivered to them. This is called “serving” them.
- Have the sheriff in the county where the Defendant/Respondent lives serve the *Summons* and your Complaint or Petition. If you don’t want to use the sheriff, you may be able to hire a private process server. You cannot serve the *Summons* yourself.
- Give the sheriff or process server at least one copy of the *Summons*, one copy of the Complaint or Petition, and a blank *Proof of Service of Summons* form **for each Defendant/Respondent** to be served.
 - If you are suing more than one Defendant/Respondent, you will also need to give the sheriff a copy of the *Additional Defendant/Respondent Address and Service Information* form for each additional Defendant/Respondent who will be served.
 - Some counties may require extra copies of the *Summons* and other forms. Ask your local sheriff’s office or process server if they have any additional instructions.
 - If you are mailing your documents to the sheriff, you can use the *Letter to the Sheriff* found at ilcourts.info/forms.
- There is a fee for the sheriff or a process server to serve your documents. Contact the sheriff or process server to find out the fee in your case.
 - If you have an *Order for Waiver of Court Fees*, give a copy to the sheriff so you are not charged a service fee. (Some sheriffs outside of Illinois will not accept an Illinois *Order for Waiver of Court Fees*.)



STEP 3

CONFIRM THE OTHER PARTY WAS SERVED.

- After the sheriff or process server serves the other party with your court forms, they will fill out the *Proof of Service of Summons and Complaint/Petition* form. (Some sheriffs or process servers might use their own version of this form.) Then they will file it with the Circuit Clerk or return it to you.
- If the sheriff or process server returns the completed *Proof of Service of Summons and Complaint/Petition* to you, file it with the Circuit Clerk.
- If you do not receive a completed *Proof of Service of Summons*, you can call the Circuit Clerk to see if it has been filed and how to get a copy.
- If the sheriff or process server was not able to serve the other party, find out why. You can fill out and file a new *Summons* (called an “alias summons”) and try to have the party served again. There may be an additional fee for an alias summons.



STEP 4

GO TO COURT.

- The *Summons* either gives the other party 30 days to file a response after they are served (“30-day summons”) or lists a court date (“date certain summons”).
- For a 30-day summons:
 - You can ask for a court date as soon as the other party files their documents.
 - If you do not get a copy of the other party’s documents by the deadline, call the Circuit Clerk to ask if there is a response in the file. If there is, ask the Circuit Clerk for a copy.
 - After the deadline, you may ask for a court date even if the other party has not filed a response.
- For a date certain summons, you should attend that court date whether or not the other party has been served.